



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 9066 (EXTENSION)
NINTH REVISION September 30, 1993

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 9066 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to July 31, 1996. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.

Suzanne H. Gopelt
Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

SEP 30 1994

(DATE)

Dist: FHWA FRA USCG FAA

EXEMPTION HOLDER

APPLICATION DATE

Mercedes-Benz of North America, Inc.
Montvale, NJ

July 12, 1994

Rolls-Royce Motor Cars, Inc.
Lyndhurst, NJ

July 21, 1994

Automotive Systems Laboratory, Inc. (ASL)
Farmington Hills, MI

August 1, 1994

BMW of North America, Inc.
Montvale, NJ

August 1, 1994

TEMIC Bayern-Chemie Airbag GmbH
Aschaun/Inn Germany

August 1, 1994

(U.S. AGENT: Inflation Systems, Inc.)
Auburn Hills, MI)

Pending Renewal?
Call an exemption specialist for more inform.
202-366-4512



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of Transportation

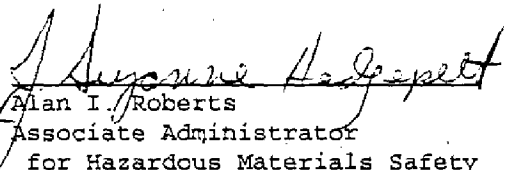
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Alan I. Roberts
Associate Administrator
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JUN 20 1995

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DOT-E 9066
(NINTH REVISION)

1. BMW of North America, Inc., Montvale, NJ, is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations to offer packages prescribed herein of passenger restraint system inflators and modules for transportation in commerce subject to the limitations and special requirements herein. This exemption authorizes the transportation of inflators and modules for passenger restraint systems classed as Division 4.1 and provides no relief from any regulation other than as specifically stated. **NOTE: Reference to 49 CFR sections in this exemption are to regulations in effect on September 30, 1991.** Each of the following is hereby granted the status of a party to this exemption:

Bayern-Chemie GmbH, Ottobrunn, West Germany (U.S. Agent:
Inflation System Inc., Farmington Hills, MI) - PTE-1.
Volkswagon of America, Inc., Troy, MI - PTE-2.
Volvo North America Corporation, Rockleigh, NJ - PTE-3.
Porsche Cars North America, Inc., Reno, NV - PTE-4.
Mercedes-Benz of North America, Inc., Montvale, NJ -
PTE-5.
Rolls-Royce Motor Cars Inc., Lyndhurst, NJ - PTE-6.
General Motors Corporation, Warren, MI - PTE-7.
Inflation Systems Inc., Farmington Hills, MI - PTE-8.
Honda of America Mfg., Inc., Marysville, OH - PTE-9.
Honda Motor Co., Ltd. Toyko 107, Japan - PTE-10.
(U.S. Agent: American Honda Motor Co., Inc. Torrance, CA)
Automotive Systems Laboratory Inc., Farmington, MI - PTE-11.
Takata Inc., Auburn Hills, MI - PTE-12.
Inflation Systems Inc., LaGrange, GA - PTE-13.

2. **BASIS.** This exemption is based on BMW of North America, Inc.'s application dated November 25, 1992, submitted in accordance with 49 CFR 107.105. The granting of party status is based on the following applications submitted in accordance with 49 CFR 107.111 and 107.105 and the public proceeding thereon:

Bayern Chemie's application dated January 15, 1993.
Volkswagon of America, Inc.'s application dated
March 29, 1993.
Volvo North America Corporation's application dated
dated October 14, 1992.
Porsche Cars North America, Inc.'s application dated
October 31, 1992.
Mercedes-Benz of North America, Inc.'s application dated
November 2, 1992.

Rolls-Royce Motor Cars Inc.'s application dated November 2, 1992.
General Motors Corporation's application dated March 23, 1993.
Inflation Systems Inc.'s application dated January 15, 1993.
Honda of America Mfg., Inc.'s application dated February 8, 1993.
Honda Motor Co. Ltd's application dated February 8, 1993.
Automotive Systems Laboratory, Inc.'s application dated January 15, 1993.
Takata Inc.'s application dated January 15, 1993.
Inflation Systems Inc.'s application dated April 21, 1993.

3. HAZARDOUS MATERIALS (Descriptor and class).

a. Airbag gas generator identified as GG4, GG5, GG6, GG7 or GG8 inflator (Drawing No. 516-2550, NZ 516-4250, 516-5600, 516-7350 or 516-7500 respectively) or, the RG1 inflator (Drawing No. SKZ-587-6810) which contains a NCS or DBS electric squib with 0.070 grams of black powder, 2 grams of AZM7 ignition powder and no more than 300 grams of GGP-401 solid propellant, classed as a Division 4.1.

b. Airbag inflators identified as GG-7 (Part No. S000194) classified in EX 9303190 and EX-9303191 which are deemed to be scrap material as described in Inflation Systems, Inc.'s application dated April 27, 1993 may be classified as a Division 4.1 when packaged in accordance with paragraph 7.d. of this exemption.

4. PROPER SHIPPING NAME (49 CFR 172.101). Flammable solid, n.o.s.

5. REGULATION AFFECTED. 49 CFR 171.11 (see paragraph 8.d. of this exemption.)

6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle, rail freight, cargo vessel, cargo-aircraft only.

7. SAFETY CONTROL MEASURES.

a. Packaging prescribed is:

1. A box constructed of single wall corrugated 275 pound test fiberboard with an inside styropore container insert for shock absorption constructed in accordance with the specifications of Drawings No. 516-3934, 516-4152 and 516-3933 submitted with the application, or

2. DOT-12B fiberboard box identified as MB-2 in DOT Exemption 8214, or

3. DOT-12B fiberboard boxes identified as Volvo-1, Volvo-2, Volvo-3 and 4 are constructed in accordance with drawings nos. 1152690, 5925507, 5925543 and 1152207, respectively. Volvo-3 drawings were submitted with application dated March 21, 1991. The fiberboard boxes are identified as 4G/X2, 4G/X3, and 4G/Y2, respectively.

b. The RG-1 inflators may also be shipped in the following packagings:

Styropore container insert for shock absorption with sufficient space for gas expansion and fixed positioning for up to 20 RG-1 Inflators, in accordance with drawing 587-6810-W007, or

Fiberboard container for one styropore container holding 20 Inflators and totalling a maximum of 3150 grams of solid propellant, in accordance with drawing 587-7409, or

Packaging module on a pallet containing 12 fiberboard containers with a maximum of 240 RG-1 Inflators and totalling less than 40 kilograms of solid propellant, in accordance with drawing 587-7409.

c. Gross weight of the package may not exceed 65 pounds.

d. Scrap inflators identified in paragraph 3.b. of this exemption may be packaged and shipped in a DOT Specification 17H drum for disposal purposes only.

8. SPECIAL PROVISIONS.

a. Persons who receive packages covered by this exemption may reoffer them for transportation provided no modifications or changes are made to the packages, all terms of this exemption are complied with, and a current copy of this exemption is maintained at each facility from which such reoffering occurs.

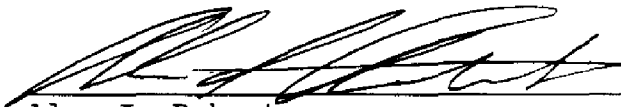
b. A copy of this exemption must be carried aboard each motor vehicle, vessel and aircraft used to transport packages covered by this exemption.

SEP 30 1993

- c. Modules and inflators identified in paragraph 3 above are exempt from the requirements of 49 CFR Parts 100-199 when installed in a motor vehicle. All other packages shipped under this exemption must bear the FLAMMABLE SOLID label regardless of the net weight of the flammable solid in each package. In addition, for shipment by cargo vessel only, all vehicles and freight containers containing packages under the terms of this exemption must be placarded FLAMMABLE SOLID.
- d. Domestic shipments via air may be made per the requirements of 49 CFR 171.11. This provision also constitutes an exemption under Part 1; 1.1 of the ICAO Technical Instructions to authorize the domestic transportation of inflators and modules for passenger vehicle restraint systems on cargo aircraft using the proper shipping name, hazard class, and UN number (Flammable solid, n.o.s., 4.1 and UN 1325). The inflators and modules must be packaged in accordance with the provisions of the Safety Control Measures prescribed in paragraph 7 of this exemption.
- e. The "FLIGHTS OF CARGO-AIRCRAFT ONLY" requirements of Appendix B to 49 CFR Part 107 do not apply to operations subject to this exemption.
- f. This exemption does not grant authority to use foreign airspace or airports outside the United States.
9. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must also inform the AAHMS, in writing, as soon as practicable of any incidents involving the package and shipments made under this exemption.
10. EXPIRATION DATE. September 30, 1994.

Issued at Washington, D.C.:

SEP 30 1993



Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety_____
(DATE)

SEP 30 1993

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: Exemptions Program.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

Dist: USCG, FAA, FHWA, FRA.